



POSTED:
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BY: MA. JULINA B. JUTILO
SB SECRETARY

Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 87TH REGULAR SESSION OF THE 13TH SANGGUNIANG BAYAN
OF CARMEN, SURIGAO DEL SUR HELD AT THE MUNICIPAL SESSION HALL ON JULY 16, 2024

PRESENT:

Hon. Harvey S. Manawatao Municipal Vice-Mayor/
Presiding Officer

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada SB Member
Hon. Nilo S. Bigno SB Member
Hon. Rencio P. Valeroso SB Member
Hon. Renato A. Calañas SB Member
Hon. Michael C. Escuyos SB Member
Hon. Carmelito E. Valeroso SB Member
Hon. Elvie U. Ohao SB Member

EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian ABC President
Hon. Jeff Anthony D. Beloria SK Federation President

ON LEAVE:

REGULAR SANGGUNIANG BAYAN MEMBER:

Hon. Tanie A. Quillano SB Member

SECTORAL REPRESENTATIVE:

Hon. Ricardo S. Iligan IP Mandatory Representative

ORDINANCE NO. 07
Series of 2024

**“AN ORDINANCE REGULATING THE PEDDLING ACTIVITIES WITHIN THE TERRITORIAL JURISDICTION
OF THE MUNICIPALITY OF CARMEN, SURIGAO DEL SUR, IMPOSING PENALTIES THEREOF AND FOR
SOME OTHER PURPOSES”**

Author : Hon. Michael C. Escuyos

Enacted: All Members present

EXPLANATORY NOTE

Peddling of agricultural products and marine products by any resident or non-resident of Carmen, Surigao del Sur has always been seen every day. There are individuals who patronized them, senior citizens complained against the loud sounds of their megaphones used, and complained from the legitimate fish vendors in the town’s public market.



According to the Local Government Code of 1991 as amended, the Sangguniang Bayan, as the legislative body, has the power to enact ordinance to regulate any business activity within its territorial jurisdiction. Yet, every one has the right to find his or her means of livings but this is not absolute right as it is subject to regulations.

The subject activity in this ordinance, aside that, it will help generate income and regulates, has covers two relevant important issues, that is, the health and life security issues. Why health? Because fish is food, and to ensure the health of the people, the peddler must necessarily submit a health certificate. Likewise, why life security? This is because there are few if not many Carmenanons were killed by allegedly as if peddler, but in fact and in truth was a hired killer. Hence, this ordinance.

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur, in a session assembled, that:

SECTION 1. Title- This ordinance is entitled "AN ORDINANCE REGULATING THE PEDDLING ACTIVITIES WITHIN THE TERRITORIAL JURISDICTION OF THE MUNICIPALITY OF CARMEN, IMPOSING PENALTIES THEREOF, AND FOR SOME OTHER PURPOSES."

SECTION 2. Coverage- This ordinance shall cover all those who engage in peddling activities within the territorial jurisdiction of the Municipality of Carmen, Surigao del Sur.

SECTION 3. Definition of Terms and phrases- As used in this ordinance, the following terms shall mean:

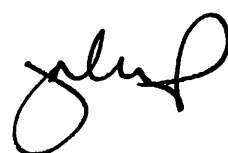
- 1) Peddling- whether on foot or aboard a vehicle to the consuming public along the municipal streets or any point in the municipality, aquatic resources and its by-products such as but no limited to fish (fresh, dried, and salted) and agricultural products such as but not limited to live pigs, fruits, vegetables and/or spices, eggs and meat products.
- 2) Aquatic Resources- includes fresh and marine water fish, all other aquatic flora and fauna and other living resources of the aquatic environment.
- 3) Nametag- a piece of plastic bearing the name, address, and picture of the registered peddler written on it that is attached to the person's clothing or attached to something worn around his/her neck.

SECTION 4. Administrative Provisions-

- 1) Peddlers in the barangays are required to secure a Barangay Clearance from the barangay where they reside, register at the Municipal Treasurer's Office, and pay the following annual fees and charges.

(a) Mayor's Permit (based on declared annual income) -	Php
(b) Medical Health Certificate -	Fifty Pesos (Php50.00)

A nametag bearing the name address and picture of the peddler shall be issued to him/her free of charge as soon as he/she has complied with the requirements provided in Section 4 (1) of this ordinance. The nametag shall be issued by the Municipal Treasurer's Office.



- (c) Peddlers are required to wear the nametag issued to them by the LGU of Carmen, Surigao del Sur during the whole duration of doing business within the municipality.
- (d) Unregistered peddlers, when apprehended are required to register to the Municipal Treasurer's Office, get the Municipal Health Certificate and pay the required fees and charges, on top of the penalty for violations incurred.

SECTION 5. Regulated Acts-

- 1) Peddling is allowed in Barangays Poblacion, San Vicente, Sta. Cruz, Puyat, Antao, Cancavan, Esperanza, and Hinapoyan.
- 2) Any person whether a registered voter in Carmen or not shall be allowed to engage in business activities provided he/she has complied Section 4 (1) of this ordinance.
- 3) Peddling of agricultural products in the barangays provided in Section 5 (1) of this ordinance is allowed, except for meat products and, live piglets unless certified free from any disease by the Municipal Veterinarian or Municipal Agriculturist.

SECTION 6. Penal Provisions- Any violations of the provisions of this Ordinance shall be imposed the following penalties:

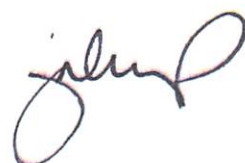
6-A)

First Offense	-	A fine of One Thousand Pesos (Php1,000.00)
Second Offense	-	A fine of One Thousand Five Hundred Pesos (Php1,500.00)
Third and Succeeding Offenses	-	A fine of Two Thousand Pesos (Php2,000.00) or imprisonment of from one day to not more than one (1) month or both to the discretion of the Court of competent jurisdiction

6-B)

- a) Peddlers caught violating any provisions of this ordinance shall have their goods confiscated and their weighing scales shall be impounded at the Municipal Treasurer's Office. The confiscated goods and weighing scale shall be released only after payment of penalty.
- b) All unclaimed confiscated fish shall be auctioned to the public two (2) hours after apprehension at Twenty Percent (20%) discount from its original selling street price, to facilitate for its consumption. Proceeds shall accrue to the Municipal Account.
- c) All unclaimed confiscated agricultural products shall be auctioned Twenty-Four (24) hours after apprehension at Twenty Percent (20%) discount from its original price.
- d) Owners of impounded weighing scales found to have been calibrated and not tampered with, shall pay Fifty Pesos (Php50.00) as redemption fee.
- e) Owners of unclaimed impounded uncalibrated weighing scales shall be fined One Hundred Pesos (Php100.00).





- f) Owners of unclaimed impounded tampered weighing scales shall be fined Two Hundred Pesos (Php200.00).

SECTION 7. Other Provisions-

- 1) The Office of the Municipal Treasurer shall maintain a book/index card of all registered fish peddlers for ready reference.
- 2) Apprehended fish peddlers shall be brought to the PNP Office for record purposes, and turned-over to the Municipal Treasurer or his/her deputy including the confiscated goods/weighing scale for the payment of fines/penalties, the required fees and charges if unregistered, and the calibration of their weighing scales if uncalibrated, and/or the seal is tampered with, and the proper disposition of the confiscated fish.
- 3) Barangay Officials are mandated to monitor peddlers operating in their barangays and report any violators of any provision of this ordinance to the proper authorities.
- 4) The Barangay shall submit to the Municipal Treasurer a list of peddlers who do business within their barangay.

SECTION 8. Separability Clause- If any provision of this Ordinance is declared unconstitutional, the remaining provisions hereof shall not be affected by such declaration.

SECTION 9. Repealing Clause- Any ordinance or parts hereof inconsistent with the provisions of this Ordinance are hereby repealed accordingly.

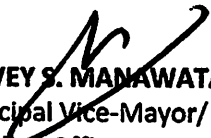
SECTION 10. Effectivity Clause- This Ordinance shall take effect five (5) days after approval and posting in two (2) conspicuous places in the municipality.

ENACTED this 16th day of July, 2024 at Carmen, Surigao del Sur.

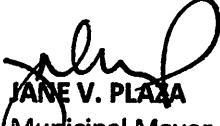
I HEREBY ATTEST to the correctness of the foregoing ordinance.


MA. JULINA T. BORDA- JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:


HARVEY S. MANAWATAO
Municipal Vice-Mayor/
Presiding Officer

APPROVED:


JANE V. PLATA
Municipal Mayor